

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Monday, June 1st, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, June 1st, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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22CV-03950	Dignity Health vs Premier Surgical Group Corporation, et al.
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Order Show Cause re: Status of Corporation

Appearance required.

Case Management Conference

Appearance required.

23CV-02663	Jocelyn Bartlett, et al. vs AVN Farms, LLC, et al.
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Motion to be Relieved as Counsel

The motion to be relieved as counsel for Plaintiff Eric Scott Ward is DENIED WITHOUT PREJUDICE.

The declaration of Binh Bui is insufficient regarding service. If the client has been served by mail at the client's last known address the attorney must have confirmed the client's last known address within the past thirty (30) days.

Here, the motion was served by mail and in confirming the client's last known address in the past thirty (30) days Bui checked 3(b)(1)(d), which is confirming the address by other means. Specifically, the declaration states at 3(b)(1)(d), "We served the client via mail at his last known address, and the Proof of Service to that effect is being filed contemporaneously with these motion documents." (Bui Decl. 3(b)(1)(d).)

This is not confirmation that the client's last known address is current. It is a statement that service was completed at the client's last known address. Before the court can grant the motion, the client's last known address must be confirmed and the appropriate information contained in counsel's declaration.

25CV-05960

Gabriela Martinez-Landeros vs Gilberto Santos, et al.

Motion for Interlocutory Judgment of Partition by Sale; Order Authorizing Sale of Real Property; Waiver of Co-Owner Consent; & Related Relief

Plaintiff's motion for partition by sale is GRANTED.

The court finds: 1. Partition by sale pursuant to Code of Civil Procedure section 872.710 et seq. is appropriate; 2. Plaintiff Gabriela Martinez-Landeros and Defendant Gilberto Santos each hold a fifty percent (50%) undivided joint tenancy interest in the real property located at 128 Chardonnay Street, Los Banos, California 93635 (the "Property"); 3. The Property is a single-family residence and cannot be partitioned in kind without great prejudice to the parties; 4. The costs of partition are to be apportioned equally between the parties.

The Court will sign the order lodged on April 20, 2026, subject to the appointment of a referee pursuant to Code of Civil Procedure section 873.510. Plaintiff is to file a notice of proposed referee supported by proper declaration(s) within ten (10) days of this court's order.

26CV-02580

Gladys Madrigal Ordaz vs Gabriela Moreno Hernandez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed May 15, 2026. A response to the request for a civil harassment restraining order was filed May 21, 2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Short Cause Court Trials
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Monday, June 1st, 2026
1:30 pm

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Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03397	Jane Doe vs Ariel Dear Foundation, et al.
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Default Prove Up Hearing

Appearance required.

25CV-01797	Cherokee Cattle Ranch, Inc. vs The Unknown Testate and Intestate Successors of R. Tolles And All Other Persons
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Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Monday, June 1st, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-06534	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
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Status Review of Settlement

Appearance required. Appear to address status of settlement. On May 30, 2025, Plaintiff filed a settlement agreement indicating that Defendant's final payment for past due rent was due on February 1, 2026. If no party appears, the Court will dismiss the action while retaining jurisdiction to enforce the terms of the settlement agreement pursuant to Code of Civil Procedure section 664.6.

25CV-01267	Discover Bank vs. Patricia Harrison
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Discover Bank is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Patricia Harrison. Defendant's answer admits all statements of the complaint and does not allege any facts constituting a

defense. In the absence of any opposition indicating how Defendant might amend her answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The court trial scheduled for September 9, 2026, is vacated.

25CV-01353 Synchrony Bank vs. Laura Fowler

Status Review of Settlement

Appearance required. At the time of the scheduled court trial on April 22, 2026, the parties informed the Court that they had reached a tentative settlement. Appear to address the status of settlement. If Plaintiff files a request for dismissal or notice of conditional settlement prior to the hearing, the hearing will be vacated and no appearance required.

25CV-01538 Cinthya Villasenor Martinez vs. Luis Villasenor Martinez

OSC re: Dismissal – Notice of Settlement

DROPPED from calendar. Plaintiff's request for dismissal was entered on May 28, 2026.

25CV-02746 Citibank N.A. vs. Judy Tassej

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's motion for an order deeming admitted requests for admission is DENIED. On May 26, 2026, Defendant filed her opposition stating that before the hearing on this motion she served a proposed response to the requests for admission that is in substantial compliance with Code of Civil Procedure section 2033.220. (See Code Civ. Proc., § 2033.280, subd. (c).) The Court notes that Plaintiff did not request monetary sanctions.

The Court confirms the trial date of July 8, 2026, at 1:30 p.m. in Courtroom 9.

25CV-03282 Rafael Calzada vs. Pascual Rodriguez

Order of Examination – Pascual Rodriguez

Appearance required.

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's unopposed motion for an order deeming admitted the truth of any matters specified in Plaintiff's Requests for Admission, Set One, served on defendant Martha Haarberg is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to Plaintiff's requests for admission. The Court notes that Plaintiff did not request an award of monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.
